

COURT FILE NO.: CV-05-006279-00
DATE: 20080505

SUPERIOR COURT OF JUSTICE - ONTARIO

RE: SIDNEY KLOTZ, FLORETH KLOTZ, JENNIFER JOY KLOTZ,
LIONEL KLOTZ, DEBORAH KLOTZ, LAUREN KLOTZ, JEFFREY
KLOTZ (born February 4, 1990) by his litigation guardian, Lionel
Klotz, MARION RAPPAPORT, SARAH RAPPAPORT, DAVID
RAPPAPORT, RICHARD RAPPAPORT, BARRY RAPPAPORT
(born March 3, 1989) by his litigation guardian, Lionel Klotz
Plaintiffs
and

THE CORPORATION OF THE CITY OF KITCHENER, (Also Known
as The City of Kitchener), WALPER HOTEL INC., Carrying on
business under the name of THE WALPER TERRACE HOTEL,
BELL CANADA
Defendants

BEFORE: Baltman, J.

COUNSEL: Gurlal Kler, for the Plaintiffs
Cindy L. Dickinson, for the The Corporation of the City of Kitchener
Julian Sakinofsky, for Walper Terrace Hotel

ENDORSEMENT

[1] This action arises out of a slip and fall that occurred on March 22, 2005.
The main plaintiff, who lives in Brampton, broke his ankle when he fell on a city

sidewalk in Kitchener. The defendants¹ move to transfer this action from Brampton to Kitchener.

[2] Rule 13.1 of the *Rules of Civil Procedure*, enacted in 2004, establishes a new approach to venue changes: whereas before the moving party had to satisfy the court that the balance of convenience substantially favoured holding the trial at another place, the new rule requires the court to assess whether a transfer is desirable in the “interest of justice”, according to such factors as location of events, parties and witnesses, and availability of court resources.

[3] The relatively few cases that have considered this new rule suggest that change of venue motions are fact specific, and it is important to consider and weigh each of the factors listed in the rule, giving them equal importance: *Eveready Industrial Services Corp. v. Jacques Daoust Coatings* (2005), 76 O.R. (3d) 390 (S.C.J.); *Gould v. BMO Nesbitt Burns Inc.* (2006), 81 O.R. (3d) 695 (S.C.J.).

[4] I shall proceed to consider the facts relevant to each of the enumerated factors.

¹ Both the City of Kitchener and Walper Hotel participated in the motion, through their counsel. Bell Canada is in the midst of changing counsel and took no position.

(i) Where did a substantial part of the events of omissions that gave rise to the claim occur?

[5] The fall occurred in Kitchener. Mr. Klotz claims he fractured his ankle due to slippery conditions caused by water escaping from the premises of the Walper Hotel and onto a Bell manhole cover located within a city sidewalk. This factor clearly favours the defendants.

(ii) Where were a substantial part of the damages sustained?

[6] The initial damages were sustained in Kitchener, as Mr. Klotz was hospitalized there for a few days after his fall and received surgery on his ankle. However, the bulk of his damages have been sustained in the Brampton and Toronto areas. Mr. Klotz lives in Brampton and operates a law practice in the west end of Toronto. Both his personal and professional activities have been affected by this injury and that loss forms a significant part of his damages claim. This factor therefore favours Brampton.

(iii) Where is the subject matter of the proceeding located?

[7] The subject matter of the action, namely the slip and fall and the liability of the parties arising therefrom, is located in Kitchener.

(iv) Is there any local community that has an interest in the subject matter of the proceedings?

[8] The defendants argued that because this action is against the municipality of Kitchener it should be tried there. They claim the citizens of Kitchener have an interest in knowing whether their sidewalks are being properly maintained and what potential damages they may have to absorb as taxpayers.

[9] This case is a straightforward slip and fall, one of many that Kitchener undoubtedly litigates each year. Fortunately the damages have not proven to be catastrophic, and while liability is in dispute, the proceeding is not unusual or complex such that the public is likely to have a particularly strong interest in it. I question whether many citizens would attend court to observe a case involving a routine slip and fall. If the Kitchener press believes the case is newsworthy it can send a reporter to Brampton to cover the case.

[10] This is unlike the case of *Chippewas of Sarnia Band v. Canada (Attorney General)* (1996), 45 C.P.C. (3d) 216 (O.C.J. (Gen. Div.)), where the dispute concerned a claim by a Sarnia Indian band to a parcel of land located in the City of Sarnia. The court understandably favoured having proceedings to determine the title to land heard in the same locale. Nor is it like *First Real Properties*

Limited v. Hamilton (City) (2002), 59 O.R. (3d) 477 (S.C.J.), which involved a by-law passed by the City of Hamilton to relocate the Hamilton Farmers Market. That litigation directly affected the Hamilton community.

[11] In *Rushnell v. Belleville (City)*, [2007] O.J. No. 4246, Master Dash moved an action from Toronto to Belleville because it involved a motor vehicle accident where the plaintiff, a pedestrian, was struck by a bus owned by the City of Belleville and operated by one of its employees. He found the allegations against the City of Belleville would interest its citizens because they concerned the safety of public transit in their city. However, that case involved catastrophic injuries, including severe brain damage, and, unlike this case, there was no connection with Toronto other than the office location of plaintiff's counsel.

[12] While this lawsuit may be of modest interest to the Kitchener community, it has little bearing on the community at large. Therefore, at best, this factor only slightly favours Kitchener.

(v) The convenience of the parties, the witnesses and the court

[13] In my view this factor strongly favours Brampton. Both the main plaintiff and his wife, an FLA claimant, reside in Brampton. The remaining FLA claimants

reside in Brampton or Manchester, England. None of the plaintiffs have any connection with Kitchener.

[14] Although a few of the liability witnesses for the defence reside in the Kitchener area, the majority of the key witnesses are located in Brampton and Toronto. The plaintiff's expert engineer works in Toronto. His family doctor and his expert orthopaedic surgeon practice there. His treating orthopaedic surgeon practices in Brampton. The plaintiff's accountant, who is supporting his loss of income claim, practices in the west end of Toronto. For the witnesses coming from Toronto, Brampton provides a compromise location.

(vi) Are there counterclaims, crossclaims, or third or subsequent party claims?

[15] Although the defendants have cross-claimed, liability was already very much in issue and therefore this factor does not significantly alter the litigation. I consider this factor neutral.

(vii) Any advantages or disadvantages of a particular place with respect to securing the just, most expeditious and least expensive determination of the proceeding on its merits

[16] Contrary to what is contained in the defendants' affidavit material, there is little if any advantage to trying this case in Kitchener. Currently civil cases in Brampton are being tried within months of being set down, by virtue of running lists (for trials of up to five days) and twice-yearly blitz lists (for longer trials). If the parties and their counsel are ready and available, this case could easily be tried in early 2009. Therefore this factor is also neutral.

(viii) Are judges and courts facilities available at the other county?

[17] Both cities have judges and facilities available, so this factor is also neutral.

(ix) Any other relevant matter

[18] The plaintiff is 79 years old. This trial is estimated to take between five to seven days. He has deposed that requiring him to drive to and from Kitchener (over a two-hour round trip) on a daily basis would pose undue hardship. I recognize the plaintiff continues to practice law full-time and has travelled out of the country since this incident. However, at his age a commute of over two hours for several successive days does pose some hardship. This factor tilts the case slightly in favour of Brampton.

Conclusion

[19] Upon weighing these competing factors, I find they are closely balanced. On the one hand, the event giving rise to this action occurred in Kitchener, and that is where the defendants are located. That community may have some modest interest in this case. On the other hand, the key plaintiffs and most of the key witnesses reside or work in Brampton or Toronto, and it would strain the plaintiff to attend this trial in Kitchener.

[20] On balance, I find the factors favouring Kitchener are not so compelling that the interest of justice requires moving the action from Brampton, where the plaintiff lives and where he commenced this action. The motion is therefore dismissed.

[21] On agreement of counsel, costs positions applicable in either result were made orally at the time of the hearing. Given the decision, costs of this appeal are awarded to the plaintiffs, fixed at \$700.00 inclusive of GST and disbursements.

Baltman J.

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